

Jagdish Soni vs Raju on 2 August, 2023

Author: Amar Nath Kesharwani

Bench: Amar Nath Kesharwani

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
SA No. 1805 of 2022
(JAGDISH SONI AND OTHERS Vs RAJU AND O

Dated : 02-08-2023

Shri Akhilesh Kumar Jain - Advocate for the appella

Ms. Kamlesh Tamrakar - Panel Lawyer for respondent

Heard on the question of admission. The appeal is admitted for final hearing on the following substantial questions of law :

- i) Whether under the facts and circumstance of the case the 1st Appellate Court has erred in law in giving the finding that only relief for declaration of share in the suit property is maintainable.
- ii) Whether under the facts and circumstance of the case 1st Appellate Court has erred in Law in applying the provisions of Section 16 of Hindu Marriage Act, 1956.
- iii) Whether the first appellate court has erred in law by reversing the judgment and decree passed by the 1st Civil Judge Class-1, Lakhnadaun, Distt.-

Seoni in Civil Suit No.31-A/2016.

Issue notice to respondents No.1 and 2 along with memo of appeal, substantial questions of law and I.A.No.6277/2023 application under Order 39 Rule 1 & 2 CPC, on payment of process fee within 10 working days. Notice be made returnable within four weeks.

List after four weeks.

(AMAR NATH (KESHARWANI)) JUDGE skt